offhrs legal review

offhrs — Legal / tax review package

Prepared: November 1, 2026
Live site: https://offhrs.app
Policy version date shown on site: November 1, 2026
Partner portal: https://partners.offhrs.app (same app as https://offhrs.app/partners)

Not legal or tax advice. This cover note is for counsel / CPA engagement only.

Documents in this package (PDFs)

#	Document	Live URL
1	Terms of Use	https://offhrs.app/terms/terms-of-use
2	Privacy Policy	https://offhrs.app/terms/privacy-policy
3	Service Terms	https://offhrs.app/terms/service-terms
4	Data Protection Addendum	https://offhrs.app/terms/data-protection
5	Cookie Policy	https://offhrs.app/terms/cookies
6	Content Policy	https://offhrs.app/terms/content-policy
7	Marketplace Seller Addendum	https://offhrs.app/terms/marketplace-seller-addendum

Also useful context (not legal text): https://offhrs.app/partners/shopify-sync

Product facts (for the engagement)

- Ontario-based platform; consumer apps + partner dashboard at `partners.offhrs.app`
- **Workshops (Lite / Pro):** Stripe Connect Express; 0% platform commission on tickets; Stripe's standard card fee currently **2.9% + CA$0.30** per successful domestic-card transaction (as published by Stripe; international cards may cost more), borne by vendor; 13% Ontario HST on Stripe SaaS subscriptions
- **Shopify Sync:** $29 CAD / 30-day trial; billed via **Shopify Billing** (not Stripe); guests book on Shopify checkout; 0% commission by offhrs on those orders; uninstalling

the app cancels Sync billing via Shopify
- **Artist Marketplace:** Canada-only shipping; **3%** platform fee on item subtotal + Stripe processing; prepaid Canada Post labels via Shippo (buyer shipping held by platform for postage); sellers may be GST/HST-registered or not
- **Decided product tax model (code today):** collect Marketplace GST/HST at checkout **only when the vendor is GST/HST-registered**, into their Connect account; vendor remits. Do **not** collect for unregistered vendors. Shipping postage is held by the platform; GST/HST for registered vendors is **paid out** to the vendor to remit (not conflated with shipping)
- **Marketplace cancellations:** Buyer may self-cancel from **Profile → Orders** before carrier First Scan (or before pickup completion) for an automatic full refund; seller and offhrs may also refund in that window. After First Scan, cancel/refund is blocked; damaged / SNAD claims within 14 days
- **Refunds:** Stripe processing fee stays with the vendor on refunds (workshops + Marketplace pre–First Scan), same as workshops
- **Phone / notices:** Mobile numbers are optional; transactional notices are email (Resend), not SMS
- **Retention:** Transaction / tax fields retained up to six (6) years for CRA; no automated purge cron today (records kept). Partner post-termination: Bookings CSV export in dashboard; Marketplace/client exports on request to hello@offhrs.app within 30 days
- Partner clickwrap records assent to ToU, Privacy, Service Terms, DPA, Cookies, Content Policy, and Marketplace Seller Addendum (versioned)

What's new in this November 1 pack (vs October 28)

1. Stripe fee language aligned to Stripe Canada published wording (2.9% + CA$0.30 domestic)
2. Buyer Marketplace self-cancel (Profile → Orders) reflected in ToU, Service Terms, Seller Addendum, and checkout disclosures
3. DPA: optional mobile numbers; no automated SMS; export window clarified (Bookings CSV + email request)
4. Confirmed: no Full License plan; Marketplace platform fee is **3%** (not 5%)
5. Partner portal URL remains **partners.offhrs.app**

Questions for Ontario counsel (marketplace / e-commerce)

Please review the PDFs and answer (or redline) the following:

1. **Chargebacks / Connect clawbacks** — Are vendor + consumer chargeback / debit / offset clauses enforceable and clear enough for Stripe Connect Express in Canada?
2. **Risk of loss / shipping** — Is First Scan vs Delivered / insurance allocation fair and clear? Any gap we must disclose more prominently?
3. **Returns** — Buyer's-remorse "no returns" vs mandatory damaged / SNAD within 14 days: compliant for Canada (incl. Ontario consumer protection angles)?
4. **Buyer self-cancel before First Scan** — Is the Profile → Orders cancel + auto full refund path adequately disclosed for Ontario internet agreements / CPA?
5. **Seller of Record + limited commercial agent** — Is this framing enough for Marketplace goods, or do we need stronger / different language?

6. **PIPEDA** — Sharing buyer shipping address with sellers; marketing restrictions; account deletion / anonymization of Marketplace orders — any gaps?
7. **Processors** — Shippo, Canada Post, Stripe, Shopify, hosting, email: adequate disclosure in Privacy / Cookies?
8. **Quebec / French** — If we sell into QC at scale, what French-language or consumer-law obligations apply, and when must we act?
9. **Home-based sellers** — For Ontario internet-sale disclosures (seller identity / address shown at checkout), may home-based sellers show a business mailing address instead of a home address?
10. **Shopify Sync** — Terms say Sync is billed through **Shopify Billing** (not Stripe). Any consumer/merchant disclosure issues with a dual billing model (Stripe SaaS vs Shopify-billed Sync)?
11. **Clickwrap** — Is recording ToU / Privacy / DPA / Seller Addendum (and related policies) version + IP / UA / timestamp at signup (and re-accept for existing vendors) adequate assent?
12. **Data retention** — Stating retention "up to six years" for CRA while keeping records indefinitely (no purge job) — any issue, or should we commit to a hard deletion schedule?

Please return either written approval of the current text or redlines we can apply, then we will bump the policy date if needed and redeploy.

Questions for CPA / tax counsel (GST/HST)

Please answer in writing:

1. Are we a **distribution platform operator** / marketplace facilitator for qualifying goods under the Excise Tax Act digital-economy rules?
2. Do third-party Marketplace sales create GST/HST duties for offhrs when the **seller is not registered**?
3. Confirm or reject our **current build**: collect GST/HST only for **registered** vendors into their Connect account (vendor remits); do **not** collect for unregistered vendors. Should we instead collect on **all** Marketplace sales?
4. Is the **3% platform fee** taxable to registered vendors / how should we treat it?
5. How should we **remit** (which return lines, timing, ITCs) for SaaS HST we already charge vs any Marketplace facilitator amounts?
6. Any **PST/QST** issues for BC / SK / MB / QC if buyers are there (Canada-only ship)?
7. Confirm Stripe Tax goods code **`txcd_99999999` (General – Tangible Goods)** is appropriate for mixed craft / art / goods, or name a better code.

Until we have this opinion: keep Marketplace GMV and live label volume small; do not scale national paid acquisition for Shop.